

REPUBLIC OF THE PHILIPPINES
Province of Bataan
Municipality of Dinalupihan

SANGGUNIANG BAYAN

AN ORDINANCE ESTABLISHING THE MUNICIPAL LIBRARY OF DINALUPIHAN, BATAAN, DEFINING ITS COMPOSITION AND PRACTICE OF LIBRIANSHIP, STRENGTHENING ITS ROLE AS THE PRIMARY REPOSITORY OF CULTURAL AND HISTORIC ARCHIVES, ALLOCATING FUNDS FOR THE EFFECTIVE IMPLEMENTATION THEREOF AND FOR OTHER PURPOSES.

WHEREAS, results from the 2018 Programme for International Student Assessment (PISA) conducted by the Organisation for Economic Co-operation and Development (OECD) revealed that 15-year old Filipino students performed poorest in reading comprehension and second-lowest in Mathematics and Science proficiencies among 79 participating countries around the world.

WHEREAS, the 1987 Philippine Constitution declares that the State shall give priority to education, science and technology, arts, culture, and sports to foster patriotism and nationalism, accelerate social progress, and promote total human liberation and development;

WHEREAS, RA 7743, otherwise known as An Act Providing For The Establishment Of Congressional, City And Municipal Libraries, promotes the moral and intellectual well-being of the people, elevate the literacy level of every Filipino to the end that illiteracy is eradicated, and recognize the vital role of knowledge and information in nation-building;

WHEREAS, RA 9246 otherwise known as the "The Philippine Librarianship Act of 2003" declares that the State recognizes the essential role of librarianship as a profession in developing the intellectual capacity of the citizenry thus making library service a regular component for national development;

WHEREAS, RA 9470 otherwise known as the "National Archives of the Philippines Act of 2007" declares the policy of the State to protect, conserve, promote and popularize the nation's historical and cultural heritage and resources;

WHEREAS, this Sanggunian deems libraries as learning havens that will hone critical and creative thinking, facilitate the cultivation of patriotism and nationalism and promote maximum human development among its constituencies pursuant to the declared policy of RA 7743.

WHEREAS, this Sanggunian furthermore deems it crucial to provide utmost priority for the preservation of the town's public documents and records, not only as fundamental instruments for efficient and effective governance but also as essential tool for the preservation of the town's history and cultural memory pursuant to the declared policy of RA 9470.

NOW, THEREFORE, be it ordained by the Sangguniang Bayan that:

SECTION 1. Title. This ordinance shall be known as the ***“Dinalupihan Municipal Library Ordinance of 2022.”***

SECTION 2. Declaration of Policy. This Sanggunian sees the need to exert effort to promote intellectual well-being, elevate the literacy level of every Filipino to the end that illiteracy is eradicated by the end of the century, recognize the vital role of knowledge and information in nation-building, and giving more importance to the conservation, promotion, protection, and popularization of the town’s historical and cultural heritage by establishing public libraries as enshrined in RA 7743, otherwise known as An Act Providing For The Establishment Of Congressional, City And Municipal Libraries; RA 9246 otherwise known as The Philippine Librarianship Act of 2003; and RA 9470 otherwise known as the National Archives of the Philippines Act of 2007.

SECTION 3. Definition of Terms. For the purpose of this Ordinance, the following terms shall mean:

- (a) **“Archives”** refers to public records, papers, periodicals, books or other items, articles or materials, whether in the form of electronic, audio-visual or print, which by their nature and characteristics have enduring value, that have been selected for permanent preservation.
- (b) **“Public Records”** refers to record or classes of records, in any form, in whole or in part, created or received by a government agency in the conduct of its affairs, and have been retained by that government agency or its successors as evidence or because of the information contained therein.
- (c) **“The Practice of Librarianship”** refers to the performance of the librarian's functions, which shall include, but not be limited to the following:
 - 1. Selection and acquisition of multi-media sources of information which would best respond to clientele's need for adequate, relevant and timely information;
 - 2. Cataloguing and classification of knowledge or sources of information into relevant organized collections and creation of local databases for speedy access, retrieval or delivery of information;
 - 3. Development of computer-assisted/computer-backed information systems which would permit online and network services;

4. Establishment of library system and procedures; dissemination of information; rendering of information, reference and research assistance; archiving; and education of users;
5. Teaching, lecturing and reviewing of library, archives and information science subjects, including subjects given in the licensure examination;
6. Rendering of services involving technical knowledge/expertise in abstracting, indexing, cataloguing and classifying' or the preparation of bibliographies, subject authority lists, thesauri and union catalogues/lists;
7. Preparation, evaluation or appraisal of plans, programs and/or projects for the establishment, organization, development and growth of libraries or information centers, and the determination of library requirements for space, buildings, structures or facilities;
8. Provision of professional and consultancy services or advice on any aspect of librarianship; and
9. Organization, conservation, preservation and restoration of historical and cultural documents and other intellectual properties.

Section 4. Establishment of Municipal Library.

- (a) Site – The establishment of the municipal library shall be an integral part of the development plan of the local government unit. The edifice shall be located at the Municipal ground, Barangay San Ramon, Dinalupihan, Bataan.
- (b) Division/Section – The municipal library shall have the following divisions and sections:
 - a. CIRCULATION SECTION is the main section of the library. It is responsible for the registration of new clients in order to obtain library cards. It contains books in all subject areas;
 - b. DINALUPIHENO SECTION contains books and other materials about the history, culture, arts, and images about Dinalupihan, Bataan. Ordinances from previous and present local officials are included in this section;
 - c. FILIPINIANA SECTION contains books and periodicals written by Filipino authors and by foreign authors about the Philippines. Articles about the Philippines are also included in this section;

- d. PERIODICAL SECTION contains magazines, journals, and newspapers on a periodic basis;
 - e. SPECIAL COLLECTION SECTION contains Theses and Dissertations, Law books, Books from the National Library of the Philippines, Bangko Sentral ng Pilipinas – Knowledge Resource Network (BSP-KRN) publications, NEDA Publications, and other foreign publications;
 - f. COMPUTER AND INTERNET SECTION provides free use of computers with Internet / WI-FI access;
 - g. CHILDREN’S SECTION houses children’s books, educational toys, and board games;
 - h. GENERAL REFERENCE SECTION houses general encyclopedic works including dictionaries, almanacs, atlases, directories, handbooks, manuals, indexes and abstracts, etc;
 - i. BAGGAGE SECTION is where the library clients’ IDs/library cards are checked and bags and other belongings are collected while inside the library premises.
- (c) Materials – The municipal library shall acquire archives from various government agencies, local and international non-governmental organizations, and public records from the Provincial Government of Bataan and the Municipality of Dinalupihan.
- (d) Amenities – the edifice that houses the library shall have the following: (1) small-group discussion room, (2) computer room (3) play room, and (4) restroom.

Section 5. Functions of the Municipal Library. The municipal library shall have the following functions:

- (a) To make available to the members of the community reading materials of wide array including reading materials prescribed by the Department of Education Culture and Sports and national newspapers of general circulation and others;
- (b) To be used as a venue for audio-visual presentation in the community and other kinds of exhibitions and activities aimed at increasing the literacy rate by government agencies, non-governmental organizations or private entities in the dissemination of information of general interest; and
- (c) to offer such other related services in the furtherance of RA 7743.

Section 5. Powers and Functions of the Municipal Librarian. Adopting the applicable provisions under Section 5 of RA 9246 for the purpose of this Ordinance, librarianship shall deal

with the performance of the librarian's functions, which shall include but not limited to the following:

1. Select and acquire multi-media sources of information which would best respond to clientele's need for adequate, relevant and timely information;
2. Catalogue and classify knowledge or sources of information into relevant organized collections and creation of local databases for speedy access, retrieval or delivery of information;
3. Develop computer-assisted/computer-backed information systems which would permit online and network services;
4. Establish library system and procedures; disseminate information; render information, reference and research assistance; archiving; and educate users;
5. Render services involving technical knowledge/expertise in abstracting, indexing, cataloguing and classifying' or the preparation of bibliographies, subject authority lists, thesauri, and union catalogues/lists;
6. Organize, conserve, preserve and restore historical and cultural documents and other intellectual properties.

Section 6. Qualifications of the Municipal Librarian. Adopting the applicable provisions under Section 15 of RA 9246 for the purpose of this Ordinance, the qualifications for the eligibility of a municipal librarian shall include, but not limited to:

1. Citizen of the Philippines or a foreign citizen whose country has reciprocity with the Philippines as regards the practice of librarianship;
2. Good health and good moral character;
3. Graduate of Bachelor's degree in Library Science and Information Science; Bachelor of Science in Education or Elementary Education; or Bachelor of Arts with a major or specialization in Library Science; Master of Arts in Library Science or Library and Information Science; or Any masteral degree with concentration in Library Science; and
4. Passed the licensure examination for Librarians.

Section 7. Appropriations. In the next ensuing fiscal year after this Ordinance shall have become effective, the Sangguniang Bayan shall cause the appropriation of funds necessary for the Municipal Library to efficiently and effectively carry out the provisions of this Ordinance, and to include therein certain all necessary operational or program support expenditures.

Section 8. Separability Clause. If for any reason or reasons that any provision of this Ordinance shall be held unconstitutional or invalid, other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect.

Section 9. Repealing Clause. All prior ordinances or parts thereof inconsistent with this Ordinance are hereby repealed or modified accordingly.

Section 10. Effectivity Clause. This Ordinance shall take effect 15 days after compliance with the relevant requirements of posting and or publication as provided under the Local Government Code of 1991.

ORDAINED: _____

I hereby certify to the correctness of the foregoing ordinance which was duly ordained by the Sangguniang Bayan during its regular session held on _____.

Secretary to the Sangguniang Bayan

Attested by:

Presiding Officer

Approved by:

Municipal Mayor